



From Diagnosis to Design: Regulatory Accumulation and Simplification Reform in Chile

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BACKGROUND

Regulatory accumulation is a structural feature of modern states: each new problem generates new regulation, while existing rules go unreviewed (Adam et al., 2019). Its administrative consequences are documented, from bureaucratic overload and delay to agencies triaging which rules to enforce (Lenz et al., 2025; Zink et al., 2025). But much of this literature treats accumulation as a burden to be measured rather than a problem to be politically defined (Hinterleitner et al., 2024). How accumulation is diagnosed, and what conception of the State the proposed remedies carry, shapes which reforms are designed. Chile, having recently passed two simplification laws, offers a case for tracing that link from diagnosis to design.

RESEARCH QUESTIONS

- How is regulatory accumulation “diagnosed”? What arguments are used to justify simplification reforms?
- What role does the State play in simplification reforms? To what extent do views align across the political spectrum?

CASES

Law 21,718 — Construction Permit Acceleration

Sector-specific reform targeting permit bottlenecks in construction Sharp, specific changes with deep private-sector engagement in design

- Less bureaucracy: permits replaced by sworn statements
- Professional liability: stricter regulation of architects’ and engineers’ responsibility

Law 21,770 — Framework Law on Sectoral Permits

Cross-cutting rationalisation covering multiple productive sectors Structural reform co-designed with agencies

- “Alternative procedures”: notices or affidavits replace prior permits for lower-risk activities
- Administrative silence: requests deemed valid, or trigger legal consequences, if authorities miss the statutory deadline
- Digital one-stop shop centralising submission and tracking of permits
- Maximum time limits for public agencies to respond to requests

METHODOLOGY

Design. Comparative qualitative process-tracing across the two reforms above: one sectoral, one cross-sectoral.

Sources. Legislative histories* and technical reports for both bills. Records classified by legislative stage (chamber of origin, revising chamber, Constitutional Court review), setting (committee vs. floor debate) and speaker (legislators, executive officials, technical advisors, judiciary, trade association representatives).

Coding. Codebook developed inductively from the corpus; all 77 passages then re-coded in NVivo against the final two-dimensional version:

- Diagnosis — how regulatory accumulation is problematised: 9 codes, 4 clusters
- Discourse — the role of the State the reform implies: 7 codes, 3 clusters

Analysis. Distribution and co-occurrence of both dimensions, compared across the two laws and across speakers; legislators grouped into right- and left-wing blocs.

In progress. 20 semi-structured interviews with agency professionals, policymakers, advisors and legislators. Results shown here draw on the documentary corpus only.

* “Legislative history” is a collection of background information, documents, and parliamentary debates that explain how a law was drafted and enacted. It is compiled by staff at the National Congress Library (BCN) and it is freely accessible to the public.

Diagnosis	9 codes · 4 clusters	Discourse on the State	7 codes · 3 clusters
■ Exercise of power		■ Control of administrative power	
Scope of agency discretion	23	Democratic control	21
Information / opacity	1	Public discretion	18
■ Regulatory framework		Technical autonomy	16
Rules' proportionality	21	State accountability	11
Policy layering / dispersion	4	■ Nature of the State	
■ Procedural inefficiency		Subsidiary / limited state	15
Inefficiency / delays	22	Rights-guaranteeing state	14
Inter-institutional coordination	5	■ State modernisation	
Lack of enforcement	4	State modernisation	15
■ Economic context			
Macroeconomic conditions	8		
Microeconomic conditions	2		

n = coded passages: 64 carry a diagnosis code, 69 a discourse code; a passage may carry more than one. Colours match the figures opposite.

KEY REFERENCES

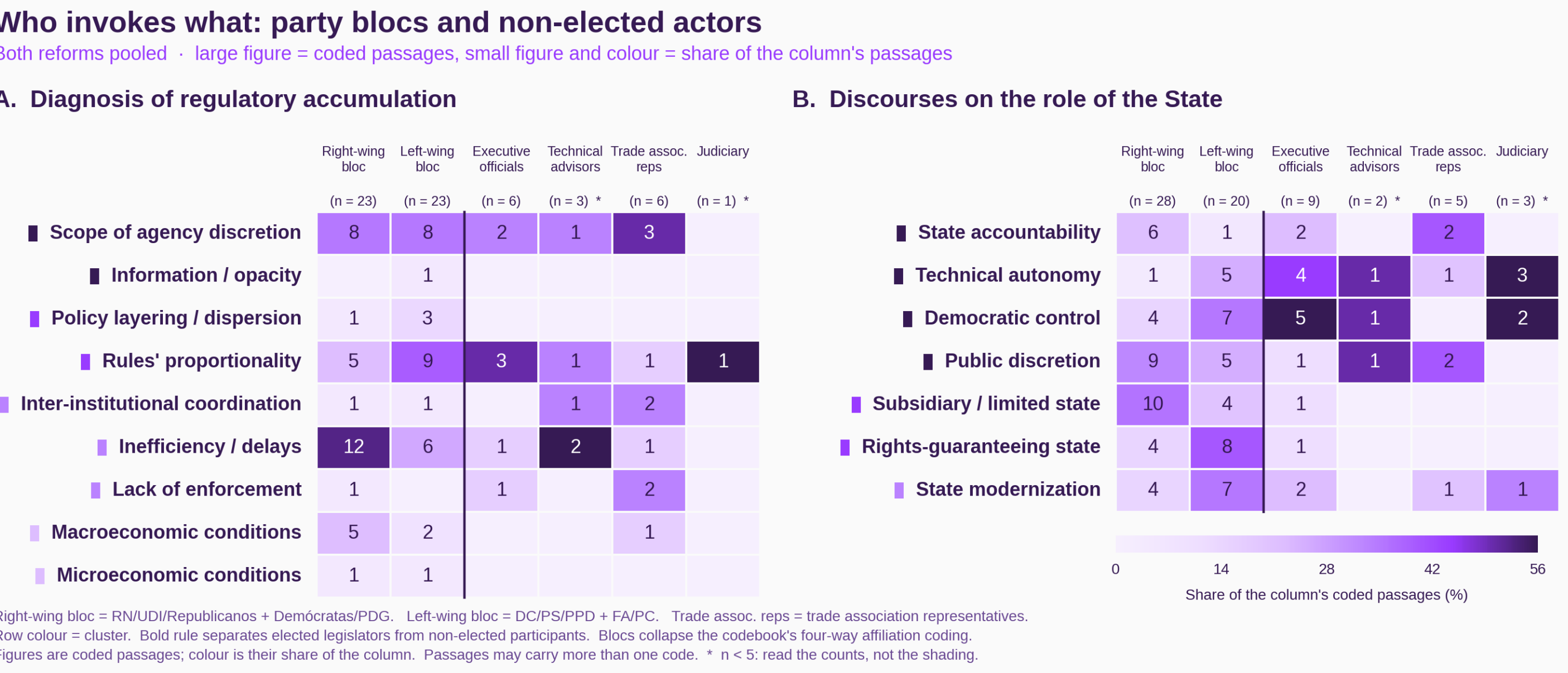
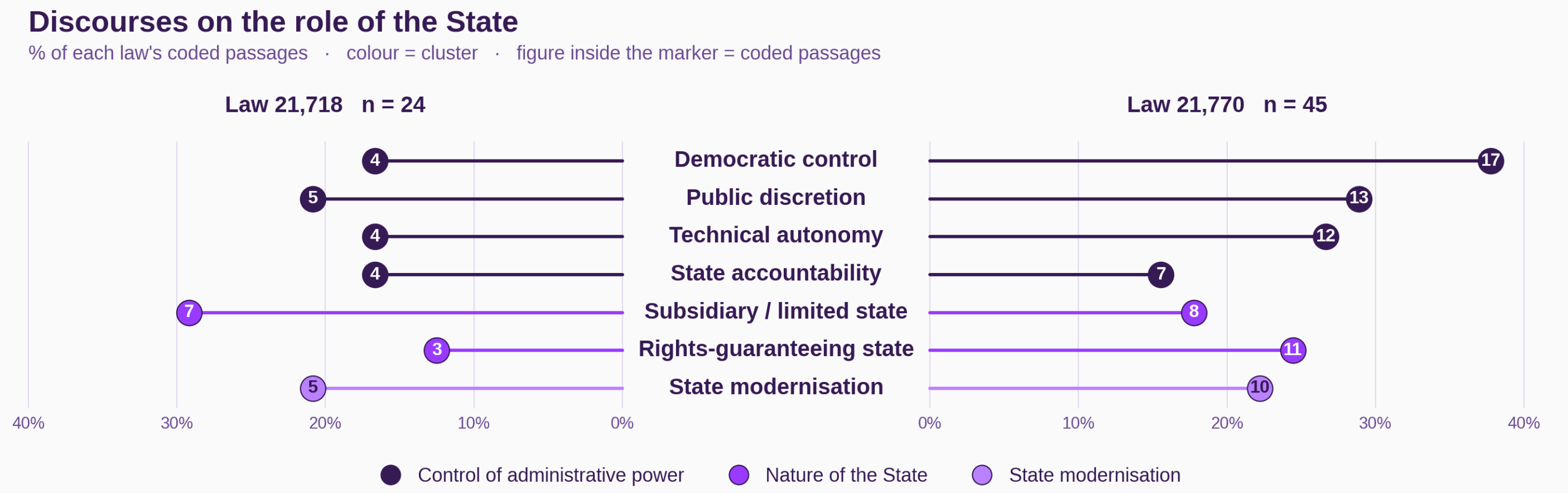
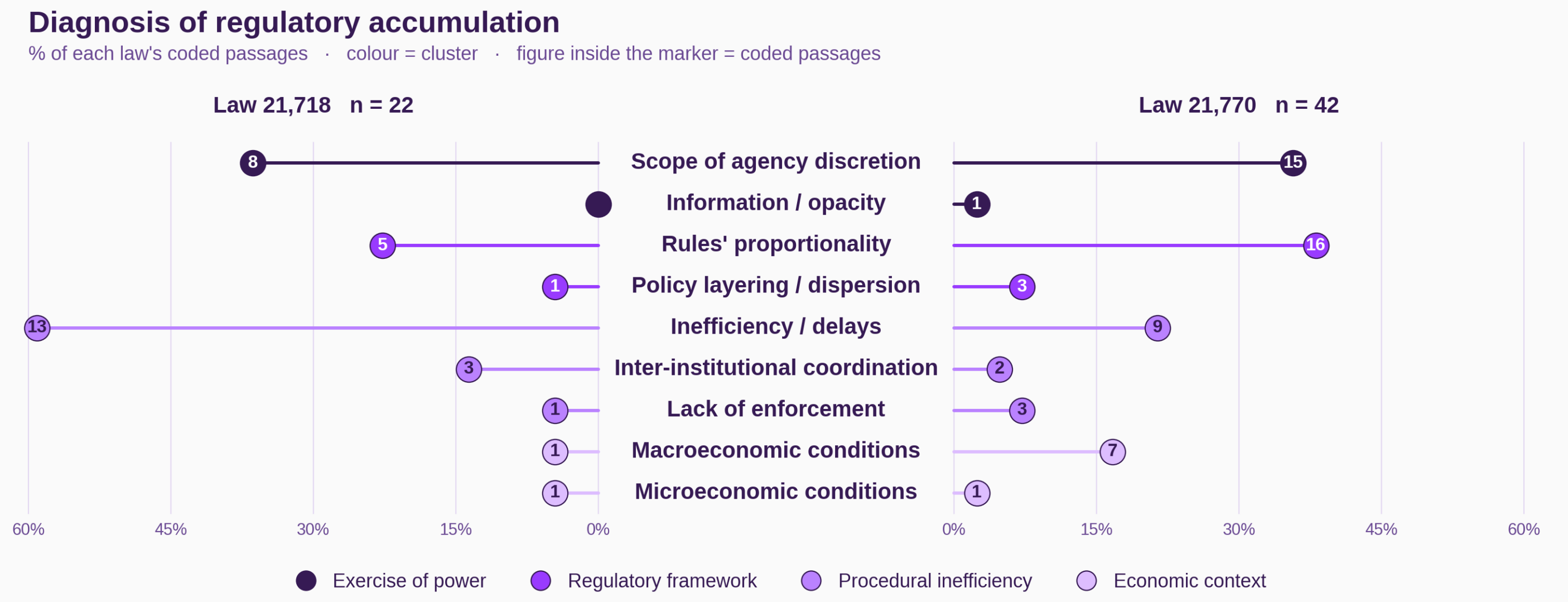
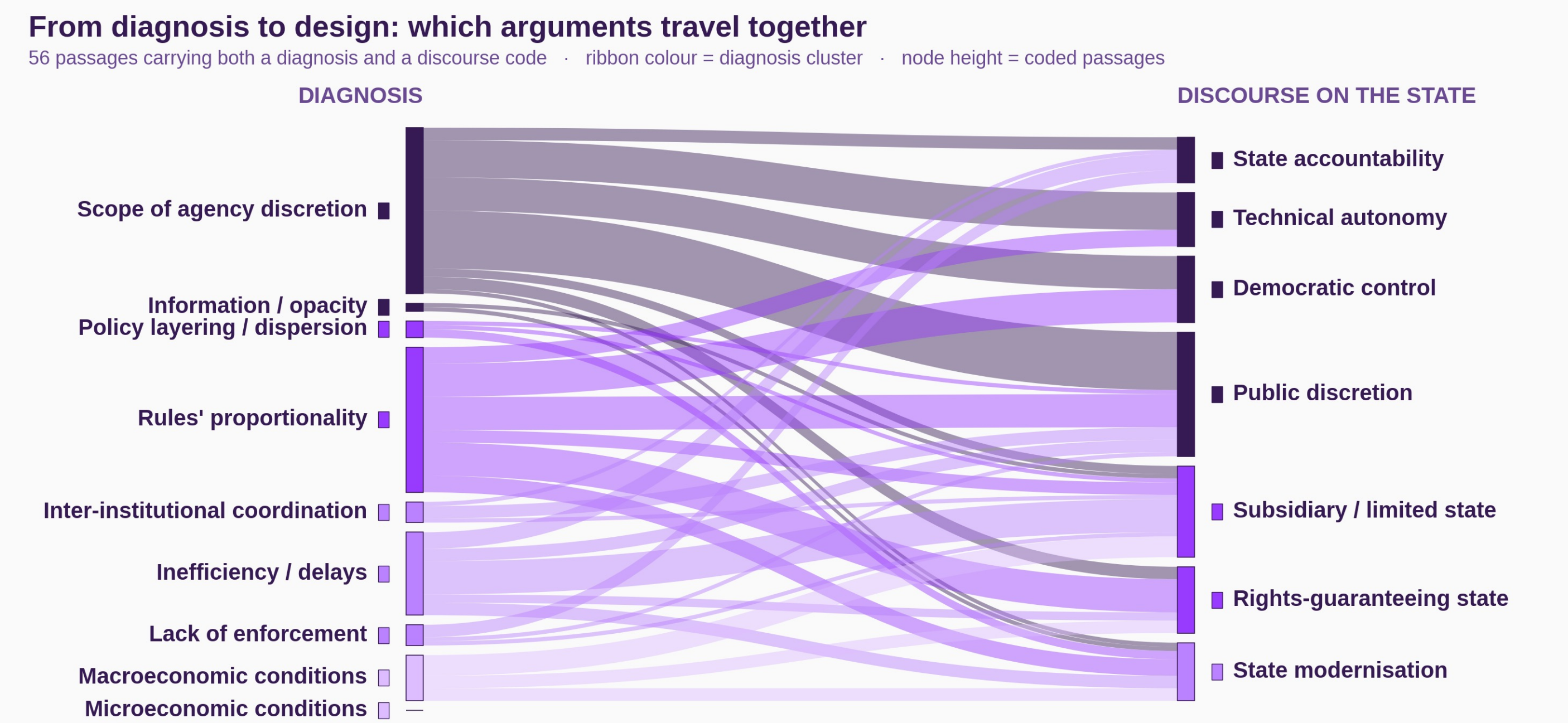
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Hinterleitner, M., Knill, C., & Steinebach, Y. (2024). The growth of policies, rules, and regulations: A review of the literature and research agenda. *Regulation & Governance*, 18.

Lenz, A., Steinebach, Y., & Cosula, M. (2025). Mapping bureaucratic overload: Dynamics and drivers in media coverage across three European countries. *Regulation & Governance*, 19.

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PRELIMINARY RESULTS



FINDINGS

Documentary corpus; interviews pending.

- Two routes to argument.** Diagnosed discretion carries arguments about who controls the margin (14 of 56); diagnosed delay, arguments for a smaller State (8).
- Different diagnoses but one constant.** Delay accounts for 59% of passages in the sectoral reform and 21% in the cross-sectoral one, where proportionality leads (38%). Agency discretion appears in 36% under both laws.
- Different States invoked.** Limiting the State, 29% against 18% in the sectoral reform; democratic control, 38% against 17% in the cross-sectoral one.
- Party blocs diverge on which State.** The right pairs a limited State (36%) with liability for delay (21% against 5%); the left invokes rights guarantees (40%) and technical autonomy (25%).
- Why it matters.** Diagnosis and proposed remedy do not vary independently. Reading simplification as technical de-bureaucratisation misses the contest over administrative control running through both reforms.

